IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
COURT-IV

C.A. (CAA) NO. 81/ND/2025

Scheme of Amalgamation under Section 230-232 of the Companies Act, 2013 read along with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

WIN-MEDICARE PRIVATE LIMITED

... (Demerged Company/Applicant Company No. 1)

AND

SIGNUTRA INDIA PRIVATE LIMITED

... (Resulting Company/Applicant Company No. 2)

Order Delivered on: 03.11.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM,
HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Kartikeya Goel, Adv.

ORDER

PER: MANNI SANKARIAH SHANMUGA SUNDARAM, MEMBER (JUDICIAL)

1. This is a first motion application filed by the applicant companies herein namely M/s Win-Medicare Private Limited (hereinafter referred as Demerged Company/Applicant Company No. 1) and M/s Signutra India Private Limited (hereinafter referred as Resulting Company/Applicant Company No. 2) under sections 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement proposed between the

applicant companies for the purpose Scheme of Arrangement. The copy of the Scheme of Arrangement (hereinafter referred to as the "SCHEME") has been filed.

2. Affidavit in support of the above application sworn by Ms. Ritu Aswal on behalf of the Applicant Company No. 1 and Mr. Sachin Rohilla on behalf of Applicant Company No. 2 and duly authorized by the Board of Directors of the Applicant Companies vide their respective board resolution dated 30.07.2025 and 24.07.2025, is filed. It is also represented that the registered office of the applicant company is under the domain of Registrar of Companies, NCT of New Delhi Haryana and within the territorial jurisdiction of this Tribunal.
3. The Applicant Company No. 1/Demerged Company i.e., M/s Win-Medicare Private Limited was incorporated on 28th April 1981 under the provisions of the Companies Act, 1956 bearing CIN: U51397DL1981PTC011647, having its registered office at 1311, Modi Tower, 98, Nehru Place, New Delhi-110019. The Authorized Share Capital of the Applicant Company No. 1/ Demerged Company is Rs. 5,00,00,000/- divided into 50,00,000 equity shares of Rs. 10/- each. The present Issued Share Capital of Applicant Company No. 1 is Rs. 1,00,00,000/- divided into 10,00,000 equity shares of Rs. 10/- each. The present Subscribed and Paid-up Capital of the Company is Rs. 96,87,650/- divided 9,68,765 Equity Shares of Rs. 10/- each. The Demerged Company is a trading company primarily engaged in marketing, distribution and selling of inter-alia pharmaceutical, medical, veterinary, surgical, cosmetic and nutraceutical products comprising of various brand portfolios including Signutra Business.
4. The Applicant Company No. 2/Resulting Company i.e., M/s Signutra India Private Limited was incorporated on 17th December 2024 under the provisions of the Companies Act, 2013 bearing CIN: U10790DL2024PTC439973, having its registered office at 1311, Modi Tower, 98, Nehru Place, New Delhi-110019. The Authorized Share Capital of the Applicant Company No. 2/Resulting Company is Rs.

1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each. The present Issued, Subscribed and Paid-up Share Capital of Applicant Company No. 2 is Rs. 100/- divided into 10 Equity Shares of Rs. 10/- each. The Resulting Company is engaged in the business of the manufacturing, formulation and trading of food supplements, nutritional products, health drinks, diet drinks and allied products.

5. The Applicant Company No. 1 have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their audited financial statements for the year ended 31.03.2024 and along with provisional balance sheet as on 30.06.2025.
6. The Applicant Company No. 2 have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their unaudited financial statements (Provisional) for the period ended 31.03.2025 and 30.06.2025.
7. The Board of Directors of Applicant Company No. 1 and 2 have unanimously approved the proposed Scheme of Arrangement as contemplated. Copies of respective board resolution dated 30.07.2025 and 24.07.2025 passed in the said board meetings have been placed on record.
8. It is submitted that Resulting Company is a wholly owned subsidiary of the Demerged Company. Entire issued and paid-up Equity Share Capital of the Resulting Company is held by the Demerged Company and its nominee Shareholder.
9. **RATIONALE OF THE SCHEME**

   The Demerged Company runs a diverse portfolio of pharmaceutical, medical, veterinary, surgical, cosmetic and nutraceutical products comprising of various brand portfolios including Signutra Business. Signutra Business is involved in developing, manufacturing, marketing and selling nutrition solutions for various health needs.

   Signutra Business (as defined hereinafter) has built a leadership position over a long period of time and has a proven track record of delivering consistent revenue growth, strong free cash flows and high return on capital. The Scheme is being proposed to carve-out/ hive-off

Signutra Business into a separate entity. Accordingly, it is proposed to demerge Signutra Business from Demerged Company into the Resulting Company through current Scheme of Arrangement.

The proposed Scheme would be in the best interests of the Demerged Company, Resulting Company and, their respective shareholders, employees, creditors and other stakeholders for the below reasons:

i. The distinctive profile and established business model of the Signutra Business makes it suitable to be housed in a separate entity, allowing sharper strategic focus in pursuit of its independent value creation trajectory;

ii. Demerger would enable the management to attract relevant set of investors, strategic partners, lenders and other stakeholders (including aligning with the requirements of the existing investments and its related terms);

iii. Result in better and efficient control and management for the segregated businesses, operational rationalization, organization efficiency and optimum utilization of various resources; and

iv. The Scheme could lead to the right operating architecture for both companies with sharper focus on their individual business strategies and clear capital allocation, in alignment with their respective value creation journeys.

10. **With respect to the Applicant Company No. 1/Demerged Company, it is stated:**

a. The Company is having (Nine) 9 Equity Shareholders as on 30.06.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

b. The Company has 8 (Eight) Secured Creditors as on 30.06.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

c. The Company has 369 (Three Hundred Sixty-Nine) Unsecured Creditors as on 30.06.2025. Certificate from Chartered Accountants certifying the same is annexed with the application.

d. In relation to the Equity Shareholders, Secured Creditors and Unsecured Creditors, it seeks for convening/holding the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Company No. 1/Demerged Company, for the purpose of consideration and approval of the proposed Scheme of Arrangement between the Applicant Companies.

11. **With respect to the Applicant Company No. 2/Resulting Company, it is stated:**
    a. It is having 2 (Two) Equity Shareholders as on 30.06.2025. Certificate from Chartered Accountants certifying the list of equity shareholders is annexed with the application and given their respective consent by way of affidavit which is annexed with the application.
    b. The Company has nil Secured Creditors as on 30.06.2025. Certificate from Chartered Accountant certifying the same is annexed with the application.
    c. It is having 2 (Two) Unsecured Creditors as on 30.06.2025 having total outstanding is of Rs. 1,01,954/-. Certificate from Chartered Accountant certifying the same is annexed with the application and both of them given their respective consent by way of affidavit which is annexed with the application.
    d. In relation to the Equity Shareholders, it seeks dispensing with convening/holding the meeting as consent from both the shareholders are placed on record. In relation to the Secured Creditors, since there are nil secured creditors therefore, the requirement of convening/holding the meeting does not arise. Further, in relation to the Unsecured Creditors, it seeks for dispensing with convening/holding the meeting as consent from both the Unsecured Creditors are placed on record.
12. The appointed date envisaged in the scheme is the first day of the month in which the Effective Date is achieved or any such other date as may be fixed by the jurisdictional NCLT or such other date as may be mutually agreed by the Companies.

13. The Applicant Companies have confirmed that the provisions relating to the accounting treatment for the proposed amalgamation, as contained in the Scheme, were in conformity with the applicable provisions of the Companies Act, 2013. Certificates from respective Statutory Auditors of the Companies on the accounting treatment, as proposed in the Scheme, were annexed to the application and it is clearly stated that the accounting treatment is in conformity with the applicable prescribed under Section 133 of Companies Act, 2013.
14. The Applicant Companies have annexed an affidavit dated 11.09.2025 in terms of Section 230(2) of the Companies Act, 2013.
15. Taking into consideration the submissions and the documents filed therewith, the following directions are issued with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as follows:
16. **In relation to the Applicant Company No. 1: -**
    a. **With respect to Equity Shareholders:** The meeting of the Equity Shareholders of the Applicant Company No. 1 cannot be dispensed with as consent of the Equity Shareholders was not obtained. The meeting of Equity Shareholders of the Applicant Company No. 1 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the Counsel for Applicant Company No. 1. The quorum for the meeting will be 5 in number.
    b. **With respect to Secured Creditors:** The meeting of the Secured Creditors of the Applicant Company No. 1 cannot be dispensed with as consent of the Secured Creditors was not obtained. The meeting of Secured Creditors of the Applicant Company No. 1 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the Counsel for Applicant Company No. 1. The quorum for the meeting will be 5 in number.
    c. **With respect to Unsecured Creditors:** The meeting of the Equity Unsecured Creditors of the Applicant Company No. 1 cannot be dispensed with as consent of the Unsecured Creditors was not obtained. The meeting of Unsecured Creditors of the Applicant

Company No. 1 is directed to be held at the venue, date, time and mode as decided by the Chairperson in consultation with the Counsel for Applicant Company No. 1. The quorum for the meeting will be 185 in number.

17. **In relation to the Applicant Company No. 2:-**
    a. **With respect to Equity Shareholders:** In view of the consent affidavits from 2 (Two) Equity Shareholders, convening/holding the meeting of shareholders is dispensed with.
    b. **With respect to Secured Creditors:** Since there are nil secured creditors, therefore the requirement of convening/holding the meeting of secured creditors does not arise.
    c. **With respect to Unsecured Creditors:** In view of the consent affidavits from 2 (Two) Unsecured Creditors, convening/holding the meeting of Unsecured Creditors is dispensed with.

18. Mr. Gaurav H. Sethi, Mobile: 9873903132, Email id-gaurav.hsethi@gmail.com is appointed as the Chairperson and Mr. Suraj Sharma, Mobile: 9785686529, Email id-cssurajsharma@outlook.com is appointed as Scrutinizer for the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors of the Applicant Company No. 1/Demerged Company in terms of the direction issued.
19. In case the quorum as noted above for the aforesaid meetings are not present at the meeting, then the meeting shall be adjourned by half an hour. Thereafter, the persons present and voting shall be deemed to constitute the quorum. The Chairperson appointed herein along with the Scrutinizer shall ensure that the proxy Registers are properly maintained.
20. The Fees of Chairperson for the aforesaid meetings shall be Rs.2,00,000/- and the Fees of Scrutinizer shall be Rs. 75,000/-in addition to meeting their incidental expenses. The Chairperson will file his report within seven days from the date of holding of the aforesaid

meeting. The fees of Chairperson and Scrutinizer along with the travelling expenses and other out of pocket expenses shall be borne by the Applicant Company No. 1. A copy of this order shall be supplied to the Learned Counsel for the Applicant Company No. 1 who in turn shall supply a copy of the same to the Chairperson and the Scrutinizer.

21. Individual Notices shall be sent to the Equity Shareholders, Secured Creditors and Unsecured Creditors as above by the Applicant Company No. 1 through email or through registered post or speed post, 30 days in advance before the scheduled date of meeting, indicating the day, date, the place fixed for and time of meeting as aforesaid, together with a copy of the Scheme and copy of explanatory statement as required under the Companies Act, 2013 and the Rules, along with the proxy/forms and any other documents as may be prescribed under the Act. These will be provided free of cost. A compliance affidavit of service will be filed with this Tribunal.
22. The Applicant Company No. 1 shall publish an advertisement at least 30 clear days before the aforesaid meetings, indicating the day, date and the place fixed and time of meetings as aforesaid, which will be published in "Business Standard" (English) and (Hindi), both Delhi editions. The Applicant Company No. 1 shall also publish the notice on their websites, if any, and file a compliance affidavit of service with this Tribunal.
23. The Chairperson shall be responsible to report the results of the meetings to the Tribunal in Form No. CAA 4, as per Rule 14 of the Rules within 7 (seven) days of the conclusion of the meetings. The Authorized Representative/Company Secretary of the Applicant Company No. 1 and the Scrutinizer, will assist the Chairperson in preparing and finalising the reports.
24. The Chairperson shall be responsible to report the results of the meetings to the Tribunal in Form No. CAA 4, as per Rule 14 of the Rules within 7 (seven) days of the conclusion of the meetings. The Authorized Representative/Company Secretary of the Applicant Company No. 1

and the Scrutinizer, will assist the Chairperson in preparing and finalising the reports.

25. The present application i.e., **CA (CAA) No. 81 of 2025 stands allowed on the aforesaid terms.**

Sd/-
ATUL CHATURVEDI
MEMBER (TECHNICAL)

Sd/-
MANNI SANKARIAH SHANMUGA SUNDARAM
MEMBER (JUDICIAL)